

25PSCV02303 25PSCV02303

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Ramos v. Alliance Environmental, Case No. 25PSCV02303

ORDER ON MOTION FOR LEAVE TO AMEND

Plaintiff Alexandria Monique Ramos', Joseph Ramos', James Ramos' and Olive Ramos' unopposed Motion for Leave to File Third Amended Complaint to Correct Clerical Error in Date of Incident is GRANTED. The Court directs Plaintiffs' counsel to file a copy of Exhibit 1 attached to his accompanying declaration no later than 10 calendar days from the date of the hearing.

Background

Plaintiffs Alexandria Monique Ramos, Joseph Ramos, James Ramos and Olive Ramos (together, "Plaintiffs") allege that they sustained injuries and damages in a June 26, 2023 motor vehicle accident on the 57 northbound freeway, south of Diamond Bar Boulevard.

On March 9, 2026, Plaintiffs filed a Second Amended Complaint, asserting a motor vehicle cause of action against Alliance Environmental Group, LLC, AEG Holdings, LLC ("AEG"), Jose Armando, Jorge Lopez De Los Santos, and Does 1-10.

On June 9, 2026, Plaintiffs dismissed AEG, without prejudice.

A Case Management Conference is set for July 10, 2026.

The Final Status Conference is set for November 17, 2025. Trial is set for December 1, 2026.

Legal Standard

"The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading..." (Code Civ. Proc., § 473, subd. (a)(1); and see § 576 ["Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order"].)

"[T]he trial court has wide discretion in allowing the amendment of any pleading." (Bedolla v. Logan & Frazer (1975) 52 Cal.App.3d 118, 135.) "[I]t is irrelevant that new legal theories are introduced as long as the proposed amendments relate to the same general set of facts." (Kittredge Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1048 [quotation marks and citation omitted].) "[E]ven if the proposed legal theory is a novel one, the preferable practice would be to permit the amendment and allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings." (Id. [quotation marks and citation omitted].) With that said, "the failure of a proposed amendment to state facts sufficient to constitute a cause of action or defense may support an order denying a motion to amend." (California Casualty Gen. Ins. Co. v. Superior Court (1985) 173 Cal.App.3d 274, 280, disapproved of on other grounds in Kransco v. American Empire Surplus Lines Ins. Co. (2000) 23 Cal.4th 390)

Courts must apply a policy of great liberality in permitting amendments to the complaint at any stage of the proceedings, up to and including trial, when no prejudice is shown to the adverse party. (Atkinson v. Elk Corp. (2003) 109 Cal.App.4th 739, 761.) However, "even if a good amendment is proposed in proper form, unwarranted delay in presenting it may—of itself—be a valid reason for denial. . . denial may rest upon the element of lack of diligence in offering the amendment after knowledge of the facts, or the effect of the delay on the adverse party." (Roemer v. Retail Credit Co. (1975) 44 Cal.App.3d 926, 940.)

"A motion to amend a pleading before trial must:

- (1) Include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments;
- (2) State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and
- (3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located." (Cal. Rules Court, rule 3.1324(a).)

Additionally, "[a] separate declaration must accompany the motion and must specify:

- (1) The effect of the amendment;
- (2) Why the amendment is necessary and proper;
- (3) When the facts giving rise to the amended allegations were discovered; and
- (4) The reasons why the request for amendment was not made earlier." (Cal. Rules Court, rule 3.1324(b).)

Discussion

Plaintiffs move the Court for an order granting Plaintiffs leave to file a Third Amended Complaint ("SAC") to

The motion reflects compliance with California Rules of Court rule 3.1324, subdivision (a). Additionally, the Declaration of Rendell M. Guerrero ("Guerrero") reflects compliance with subdivision (b).

The unopposed motion is granted.

The Court directs counsel for Plaintiffs to file a copy of Exhibit 1 attached to the aforesaid declaration no later than 10 calendar days from the date of the hearing.